

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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MIGUEL PEREZ,

Plaintiff(s),

- against -

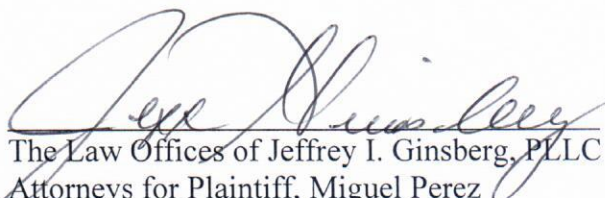
**CITY OF NEW YORK,
CITY OF NEW YORK POLICE DEPARTMENT,
DETECTIVE EDWIN ESTRADA (Shield No. 2015),
DETECTIVE DWAYNE FRANCIS (Shield No. 1851),
DETECTIVE ROBERT HAWKINS (Shield No. 2303),
SERGEANT CRAIG KEARNEY (Shield No. 3326) and
POLICE OFFICERS JOHN DOE(S) (shield numbers
unknown, said names being fictitious and unknown,
but intended to be New York City Police Officers
involved in the occurrence herein.)**

Defendant(s).
-----X

TO THE ABOVE NAMED DEFENDANT(S),

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the State, or within thirty (30) days after completion of service, where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 25, 2013


The Law Offices of Jeffrey I. Ginsberg, PLLC
Attorneys for Plaintiff, Miguel Perez
50 Broadway, 27th Floor
New York, New York 10004
Tel. (212) 490-7900

Index No.:

Date Purchased:

**Plaintiff designates KINGS
County as the place of Trial**

**Venue based on the place
and county of occurrence**

SUMMONS

Defendants Address(es):

CITY OF NEW YORK

1 Centre Street

New York, New York 10007

and/or

100 Church Street

New York, New York 10007

CITY OF NEW YORK POLICE DEPARTMENT

1 Centre Street

New York, New York 10007

and/or

1 Police Plaza

New York, New York 10007

DETECTIVE EDWIN ESTRADA

Queens Narcotics North

137-58 Northern Blvd.

Whitestone, New York 11354

DETECTIVE DWAYNE FRANCIS

Queens Narcotics North

137-58 Northern Blvd.

Whitestone, New York 11354

DETECTIVE ROBERT HAWKINS

Queens Narcotics North

137-58 Northern Blvd.

Whitestone, New York 11354

SERGEANT CRAIG KEARNEY

Queens Narcotics North

137-58 Northern Blvd.

Whitestone, New York 11354

The nature of this action is set forth in the Complaint.

The relief sought is set forth in the Complaint.

Upon your failure to appear, judgment will be taken against you by default for a sum of money exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination, with interest from November 30, 2012, and the costs of this action.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:
Date Purchased:

-----X
MIGUEL PEREZ,

Plaintiff(s),

- against -

VERIFIED COMPLAINT

**CITY OF NEW YORK,
CITY OF NEW YORK POLICE DEPARTMENT,
DETECTIVE EDWIN ESTRADA (Shield No. 2015),
DETECTIVE DWAYNE FRANCIS (Shield No. 1851),
DETECTIVE ROBERT HAWKINS (Shield No. 2303),
SERGEANT CRAIG KEARNEY (Shield No. 3326) and
POLICE OFFICERS JOHN DOE(S) (shield numbers
unknown, said names being fictitious and unknown,
but intended to be New York City Police Officers
involved in the occurrence herein.),**

Defendant(s).

-----X

Plaintiff, MIGUEL PEREZ, by his attorney, The Law Offices of Jeffrey I. Ginsberg, PLLC, complaining of Defendants, CITY OF NEW YORK, CITY OF NEW YORK POLICE DEPARTMENT, DETECTIVE EDWIN ESTRADA (Shield No. 2015), DETECTIVE DWAYNE FRANCIS (Shield No. 1851), DETECTIVE ROBERT HAWKINS (Shield No. 2303), SERGEANT CRAIG KEARNEY (Shield No. 3326) and POLICE OFFICERS JOHN DOE(S), the identity and number of whom are presently unknown to plaintiff, upon information and belief, respectfully alleges as follows:

1. That at all times hereinafter mentioned, plaintiff, MIGUEL PEREZ was and still is a resident of the County of Queens, City and State of New York.
2. Upon information and belief, defendant, CITY OF NEW YORK is a municipal corporation, duly organized and existing under and by virtue of the laws of the City and State of New York.

3. Upon information and belief, defendant, CITY OF NEW YORK POLICE DEPARTMENT, was and still is a subdivision and/or agency, and subject to the control, of the municipal corporation, defendant, CITY OF NEW YORK.

4. Upon information and belief, defendant, CITY OF NEW YORK POLICE DEPARTMENT, is a subdivision and/or agency of defendant, CITY OF NEW YORK, organized and existing under, and by virtue of, the laws of the City and State of New York.

5. That at all times relevant hereto, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, acted by and through their employees, agents and/or servants, including, but not limited to, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), who at all times relevant hereto acted within the course and scope of their authority and employment as police officers with the City of New York and/or City of New York Police Department.

6. That at all times relevant hereto, defendant, DETECTIVE EDWIN ESTRADA, was and still is a police officer in the employ of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT, and was, at all times hereinafter mentioned, a police officer with the a City of New York Police Department.

7. That at all times relevant hereto, defendant, DETECTIVE DWAYNE FRANCIS, was and still is a police officer in the employ of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT, and was, at all times hereinafter mentioned, a police officer with the City of New York Police Department.

8. That at all times relevant hereto, defendant, DETECTIVE ROBERT HAWKINS, was and still is a police officer in the employ of defendants, CITY OF NEW YORK and/or CITY OF

NEW YORK POLICE DEPARTMENT, and was, at all times hereinafter mentioned, a police officer with the City of New York Police Department.

9. That at all times relevant hereto, defendant, SERGEANT CRAIG KEARNEY, was and still is a police officer in the employ of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT, and was, at all times hereinafter mentioned, a police officer with the City of New York Police Department.

10. That at all times relevant hereto, defendants, POLICE OFFICERS JOHN DOE(S), were and still are police officers in the employ of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT, and were, at all times hereinafter mentioned, police officers with the City of New York Police Department.

11. That at all times relevant hereto, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were, at all times hereinafter mentioned, police officers employed by the City of New York and/or City of New York Police Department, acting in both their personal and official capacities, and were employees, agents and/or servants of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT, acting under the color of law, within the meaning of 42 U.S.C. §1983, *et seq.*

12. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), made an unreasonable seizure of the person of plaintiff, MIGUEL PEREZ, violating his rights under the Fourth and Fourteenth Amendments to the United States Constitution and Article I, §12 of the Constitution of the State of New York.

13. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did viciously commit an assault and battery against plaintiff, MIGUEL PEREZ, did use excessive force, wrongly and falsely arrest, falsely imprison and confine, and maliciously prosecute plaintiff, MIGUEL PEREZ; and, these violations, acts and torts were committed as a result of the policies and customs of defendants CITY OF NEW YORK, CITY OF NEW YORK POLICE DEPARTMENT, and their personnel, employees, agents and servants.

14. On or about February 27, 2013, prior to the commencement of this action, and within ninety (90) days after the claim herein arose, plaintiff, MIGUEL PEREZ, caused a Notice of Claim, in writing, sworn to and verified by plaintiff and/or plaintiff's attorney, to be served upon defendants, CITY OF NEW YORK, CITY OF NEW YORK POLICE DEPARTMENT, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), by delivering and leaving the same with the New York City Comptroller's Office, which said Notice of Claim set forth the names and post office addresses of the plaintiff and his attorney, the nature of the claims, the times when, the place where and the manner in which the said claims arose, and the items of damage and/or injuries claimed, or that might have been sustained, so far as practicable.

15. At least thirty (30) days have elapsed, prior to the commencement of this action, and since the said claim was presented to defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, for adjustment as aforesaid; and said defendants, CITY OF

NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, have refused adjustment or payment for thirty (30) days after said presentation. Case/Claim Number – 2013PI005928.

16. This action is timely commenced within one (1) year and ninety (90) days after the cause of action accrued, in accordance with New York General Municipal Law Section 50-i(1).

17. Accordingly, plaintiff, MIGUEL PEREZ, has in all respects complied with the statutory requirements for the commencement and prosecution of this action.

AS AND FOR A FIRST CAUSE OF ACTION – ASSAULT

18. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in all of the foregoing paragraphs as if fully set forth at length herein.

19. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did commit assault against plaintiff, MIGUEL PEREZ.

20. That on or about November 30, 2012, at approximately 8:15 p.m., at or about Greene Avenue, between Wyckoff Avenue and St. Nicholas Avenue, County of Kings, City and State of New York, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did commit assault against plaintiff, MIGUEL PEREZ, in that defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), acting without justification or probable cause, did intentionally place plaintiff, MIGUEL PEREZ, in apprehension of imminent harmful and/or offensive contact.

21. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did intentionally commit menacing acts and/or gestures that caused plaintiff, MIGUEL PEREZ to believe that that a harmful and/or offensive contact was about to occur.

22. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did intentionally place plaintiff, MIGUEL PEREZ in apprehension of imminent harmful and/or offensive contact.

23. That defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were negligent, reckless and careless in that they did not refrain or stop their fellow police officers from committing assault against plaintiff, MIGUEL PEREZ.

24. That defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid assault under the doctrine of *respondeat superior*.

25. As a direct and proximate result of the aforesaid assault, plaintiff MIGUEL PEREZ, sustained serious, permanent and personal injuries.

26. That solely as a result of the aforesaid assault, plaintiff MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and

injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

AS AND FOR A SECOND CAUSE OF ACTION – BATTERY

27. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

28. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), did commit battery against plaintiff, MIGUEL PEREZ.

29. That on or about November 30, 2012, at approximately 8:15 p.m., at or about Greene Avenue, between Wyckoff Avenue and St. Nicholas Avenue, County of Kings, City and State of New York, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), acting within the scope of their employ of the CITY OF NEW YORK POLICE DEPARTMENT, did commit battery against plaintiff, MIGUEL PEREZ, in that defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), without justification and without probable cause, did intentionally touch and come into offensive bodily contact with plaintiff, MIGUEL PEREZ.

30. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), without justification and without probable

cause, did intentionally touch and come into contact with plaintiff, MIGUEL PEREZ, without the consent of plaintiff, MIGUEL PEREZ.

31. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), without justification and without probable cause, did intentionally touch and come into contact with plaintiff, MIGUEL PEREZ, without the consent of plaintiff, MIGUEL PEREZ, thereby causing him serious personal injury and harm.

32. That defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were negligent, reckless and careless in that they did not refrain or stop their fellow police officers from committing battery against plaintiff, MIGUEL PEREZ.

33. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid battery under the doctrine of *respondeat superior*.

34. That as a direct and proximate result of the aforesaid battery, plaintiff, MIGUEL PEREZ, sustained serious, permanent and personal injuries.

35. That solely as a result of the aforesaid battery, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which

would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

AS AND FOR A THIRD CAUSE OF ACTION – NEGLIGENCE

36. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

37. The aforesaid acts, omissions and conduct of the defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were negligent, careless, reckless and unreasonable.

38. That defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were negligent, careless, reckless and unreasonable in that they did not refrain or stop their fellow police officers from committing assault and/or battery against plaintiff, MIGUEL PEREZ.

39. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts, omissions and conduct of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid negligence, carelessness and recklessness under the doctrine of *respondeat superior*.

40. That as a direct and proximate result of the aforesaid negligent, careless and reckless acts and omissions, plaintiff, MIGUEL PEREZ, sustained serious, permanent and personal injuries.

41. That solely as a result of the aforesaid negligent, careless and reckless acts and omissions, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

AS AND FOR A FOURTH CAUSE OF ACTION - FALSE ARREST

42. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

43. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment and/or authority, falsely arrested, imprisoned and confined plaintiff, MIGUEL PEREZ.

44. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, falsely arrested, confined and imprisoned plaintiff, MIGUEL PEREZ, against his will, and said arrest, confinement and imprisonment was not privileged.

45. That the aforesaid arrest, imprisonment and confinement of plaintiff, MIGUEL PEREZ, was without justification or probable cause, nor based on reasonable grounds, and not founded on an arrest warrant.

46. That the aforesaid arrest, imprisonment and confinement of plaintiff, MIGUEL PEREZ, was effectuated by defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting within the scope of their employment.

47. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid false arrest, imprisonment and confinement under the doctrine of *respondeat superior*.

48. That as a direct and proximate result of the aforesaid false arrest, imprisonment and confinement, plaintiff MIGUEL PEREZ, sustained serious, permanent and personal injuries.

49. That solely as a result of the aforesaid false arrest, imprisonment and confinement, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

AS AND FOR A FIFTH CAUSE OF ACTION - FALSE IMPRISONMENT

50. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

51. That on or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope

of their employment and/or authority falsely imprisoned and confined plaintiff, MIGUEL PEREZ, without his consent, and caused him to be falsely imprisoned and confined for a period of time from November 30, 2012, and thereafter until approximately October 22, 2013.

52. That on November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, intentionally confined and imprisoned plaintiff, MIGUEL PEREZ, against his will, and said confinement and imprisonment was not privileged.

53. That the aforesaid false imprisonment and confinement was without justification or probable cause, nor based on reasonable grounds, and not founded on an arrest warrant.

54. That the aforesaid false imprisonment and confinement of plaintiff, MIGUEL PEREZ, was effectuated by defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting within the scope of their employment.

55. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid false imprisonment and confinement under the doctrine of *respondeat superior*.

56. That as a direct and proximate result of the aforesaid false imprisonment and confinement, plaintiff, MIGUEL PEREZ, sustained serious, permanent and personal injuries.

57. That solely as a result of the aforesaid false imprisonment and confinement, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

AS AND FOR A SIXTH CAUSE OF ACTION - MALICIOUS PROSECUTION

58. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

59. On or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, did create and submit erroneous police reports and maliciously initiate a criminal prosecution in bad faith against plaintiff, MIGUEL PEREZ.

60. On or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA , DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, did maliciously prosecute and/or cause plaintiff, MIGUEL PEREZ, to be prosecuted before the Criminal Court of the City of New York, Queens County, under arrest number Q12666355, and thereafter under a Criminal Court Complaint, docket number 2012QN062290.

61. On or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG

KEARNEY and POLICE OFFICERS JOHN DOE(S), caused to be filed an accusatory instrument or otherwise caused criminal charges to be brought against plaintiff, MIGUEL PEREZ, who was criminally prosecuted until such time when said prosecution was resolved in accordance with a plea and disposition offered by the Queens District Attorney's Office.

62. That thereafter, on or about April 25, 2013, all criminal charges pending against plaintiff, MIGUEL PEREZ, were resolved when plaintiff, MIGUEL PEREZ, accepted a plea bargain, offered by the Queens County District Attorney's office, to a misdemeanor charge, rather than have the defendants named herein continue to offer erroneous police reports to the Queens County District Attorney's Office as the basis for a continued malicious prosecution on more serious charges.

63. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid malicious prosecution under the doctrine of *respondeat superior*.

64. That as a direct and proximate result of the aforesaid malicious prosecution, plaintiff MIGUEL PEREZ, sustained serious, permanent and personal injuries.

65. That solely as a result of the aforesaid malicious prosecution, plaintiff MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

**AS AND FOR A SEVENTH CAUSE OF ACTION –
CIVIL RIGHTS VIOLATIONS PURSUANT TO 42 U.S.C. §1983**

66. Plaintiff repeats, reiterates and re-alleges each and every allegation as contained in all of the foregoing paragraphs as if fully set forth at length herein.

67. On or about November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), working within the scope of their employment, and acting under the pretense and color of state law, knowingly, recklessly, intentionally, and without justification or probable cause, and with deliberate indifference to the rights, life and liberty of plaintiff, MIGUEL PEREZ, did commit assault and battery against, and did falsely arrest, falsely imprison and maliciously prosecute plaintiff, MIGUEL PEREZ, in violation of 42 U.S.C. §1983, *et seq.*

68. That on November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, acting under color of law and within the scope of their authority, deprived plaintiff, MIGUEL PEREZ, of his liberty without due process and without reasonable cause in violation of 42 U.S.C. §1983, *et seq.*

69. That on November 30, 2012, defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting and working within the scope of their employment, without justification and without probable cause, acting under color of law and within the scope of their authority, deprived plaintiff, MIGUEL PEREZ, of his civil rights as guaranteed by statute.

70. That the aforementioned deprivation of the civil rights of plaintiff, MIGUEL PEREZ, was a result of the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), while acting under color of law and within their authority as law enforcement officers, and while within the employ of defendants, CITY OF NEW YORK and/or CITY OF NEW YORK POLICE DEPARTMENT.

71. That the aforesaid acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were not privileged or immune.

72. That defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were not acting with immunity when they deprived plaintiff, MIGUEL PEREZ, of his civil rights.

73. That solely as a result of the aforesaid violations of his civil rights, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

**AS AND FOR A EIGHTH CAUSE OF ACTION –
NEGLIGENT HIRING, TRAINING AND RETENTION OF EMPLOYMENT SERVICES**

74. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in all of the foregoing paragraphs as if fully set forth at length herein.

75. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, were responsible for hiring police officers, including

defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), who were competent and capable of properly carrying out their jobs without causing injury to persons, including plaintiff, MIGUEL PEREZ.

76. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, were negligent, reckless and careless in hiring defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S).

77. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, negligently failed to investigate and determine whether defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), were capable and competent.

78. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, were responsible for training police officers, including defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), who were competent and capable of properly carrying out their jobs without causing injury to persons, including plaintiff, MIGUEL PEREZ.

79. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT were negligent, reckless and careless in training defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS,

DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S).

80. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, negligently failed to properly train defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), resulting in incompetent and incapable police officers.

81. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, were responsible for retaining and continuing to employ police officers, including defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), who were competent and capable of properly carrying out their jobs without causing injury to persons, including plaintiff, MIGUEL PEREZ.

82. Upon information and belief, defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, were negligent, reckless and careless in retaining and continuing to employ defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S).

83. That solely as a result of negligently, recklessly and carelessly hiring, training and retaining the employment services of said defendants, plaintiff MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which

would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

**AS AND FOR A NINTH CLAIM FOR RELIEF –
NEW YORK STATE CONSTITUTION, ARTICLE I, §12**

84. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in all of the foregoing paragraphs as if fully set forth at length herein.

85. By reason of the foregoing, and by unlawfully seizing, arresting, detaining and imprisoning plaintiff, MIGUEL PEREZ, without probable cause or reasonable suspicion, and committing assault and battery against, plaintiff, MIGUEL PEREZ, defendants, CITY OF NEW YORK, CITY OF NEW YORK POLICE DEPARTMENT, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), deprived plaintiff, MIGUEL PEREZ, of his rights, remedies, privileges and immunities as guaranteed to every citizen of the State of New York by Article I, §12 of the Constitution of the State of New York (prohibiting unreasonable searches and seizures).

86. Additionally, the defendants named herein conspired among themselves to deprive plaintiff, MIGUEL PEREZ, of his rights secured by Article I, §12 of the New York State Constitution, and took numerous steps in furtherance of such conspiracy, as set forth herein.

87. Defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), as their officers, agents, servants and employees, and are, therefore, responsible for the aforesaid battery under the doctrine of *respondeat superior*.

88. As a direct and proximate result of the foregoing, plaintiff, MIGUEL PEREZ, was caused to sustain and suffer serious, grievous bodily injury and harm, substantial physical, emotional, mental and psychological pain, humiliation, shame, indignity, damage to reputation and was otherwise injured as herein alleged.

89. That solely as a result of the violations of his civil rights, plaintiff, MIGUEL PEREZ, sustained serious injuries along with humiliation, shame, indignity, emotional and physical distress and injury all to his damage in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction; and punitive damages in an amount to be determined by a Judge and/or Jury.

WHEREFORE, plaintiff, MIGUEL PEREZ, demands judgment against defendants, CITY OF NEW YORK and CITY OF NEW YORK POLICE DEPARTMENT, which are responsible for the acts of defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), and against defendants, DETECTIVE EDWIN ESTRADA, DETECTIVE DWAYNE FRANCIS, DETECTIVE ROBERT HAWKINS, SERGEANT CRAIG KEARNEY and POLICE OFFICERS JOHN DOE(S), all of whom are jointly and severally liable, as follows:

1. On the first cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

2. On the second cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise

determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

3. On the third cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

4. On the fourth cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

5. On the fifth cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

6. On the sixth cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

7. On the seventh cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

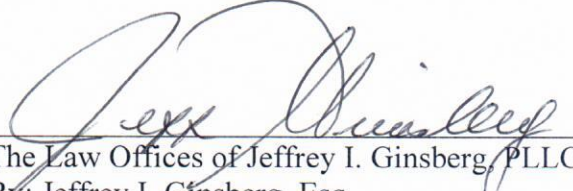
8. On the eighth cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

9. On the ninth cause of action, in a sum exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, in an amount not capable of precise determination on behalf of plaintiffs; and punitive damages in an amount to be determined by a Judge and/or Jury.

10. Awarding reasonable attorney's fees and costs under 42 U.S.C. §1988.

11. Granting such other and further relief as to this Court seems just and proper, together with attorney's fees, interests, costs and disbursements of this action.

Dated: New York, New York
November 25, 2013



The Law Offices of Jeffrey I. Ginsberg, PLLC
By: Jeffrey I. Ginsberg, Esq.
Attorneys for Plaintiff, Miguel Perez
50 Broadway, 27th Floor
New York, New York 10004
Tel. (212) 490-7900

VERIFICATION

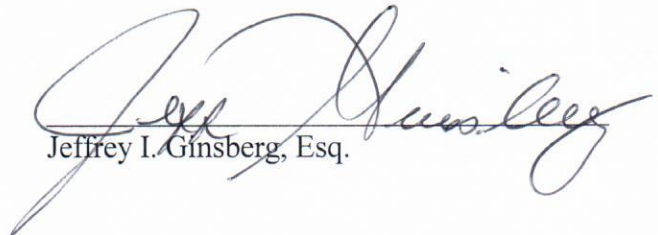
STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss.:

The undersigned, an attorney admitted to practice in the Courts of New York State, states, that affirmant is a principal of the Law Offices of Jeffrey I. Ginsberg, PLLC, the attorneys for plaintiff, that affirmant has read the foregoing Summons and Verified Complaint and knows the contents thereof, and that the same is true to affirmant's knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters affirmant believes it to be true.

That the reason why this verification is made by affirmant and not by plaintiff is because plaintiff(s) is/are not within New York County, where the attorneys maintain their offices; and that the source of affirmant's knowledge, and the grounds of belief as to those matters therein stated to be alleged on information and belief are correspondence and investigations which have been made concerning the subject matter of this action, and which are in the possession of the said attorneys.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
November 25, 2013


Jeffrey I. Ginsberg, Esq.